

22PSCV02486 22PSCV02486

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-07-13

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CIT%2C6%2C07%2F13%2F2026

Source SHA-256: 8ccc481d8ee23618ae3dde0df81e8849509cfb658643ca77ae9f2dc42b0580b4

Case Number: 22PSCV02486 Hearing Date: July 13, 2026 Dept: 6

CASE

NAME: Credit

Union of Southern California v. Nwafor Motorcars, et al.

Cross-Defendant

Dream Motor Cars, Inc.'s Motion to Dismiss the Cross-Complaint Filed Against It

TENTATIVE

RULING

The Court GRANTS Cross-Defendant Dream Motor Cars, Inc.'s Motion to Dismiss the Cross-Complaint Filed Against It. The Court hereby DISMISSES the Cross-Complaint of Nwafor Motorcars and Chikezie Prince Nwafor filed on September 12, 2024, as to Cross-Defendant Dream Motor Cars, Inc. with prejudice. The Court directs Cross-Defendant Dream Motor Cars, Inc. to submit a proposed judgment of dismissal for the Court's review and signature within five calendar days of this order.

Cross-Defendant Dream Motor Cars, Inc. is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lending dispute. On December 6, 2022, plaintiff Credit Union of Southern California (Plaintiff) filed this action against defendants Nwafor Motorcars, Chikezie Prince Nwafor aka Chikezie Nwafor, The State of California, acting by and through the California Department of Motor Vehicles

(collectively, Defendants), and Does 1 through 20, alleging causes of action for breach of agreement, breach of statutory duty, declaratory relief, quiet title, and fraud. On January 8, 2026, Plaintiff dismissed without prejudice the Second, Third, Fourth, and Fifth Causes of Action for breach of statutory duty, declaratory relief, quiet title, and fraud, respectively. On February 20, 2026, the Court entered judgment in favor of Plaintiff following Plaintiff's motion for summary adjudication to the First Cause of Action for breach of contract.

On September 12, 2024, cross-complainants Nwafor Motorcars and Chikezie Prince Nwafor (collectively, Nwafor) filed a cross-complaint against cross-defendants All Valley Dealer Auto Auction, Dream Motor Cars, Inc. (Dream Motor Cars), and Does 30 through 50, alleging causes of action for breach of contract, indemnity, breach of implied covenant of good faith and fair dealing, and negligent and intentional misrepresentation. On November 5, 2024, the court clerk entered default against Dream Motor Cars and All Valley Dealer Auto Auction was dismissed from the cross-complaint. On January 8, 2026, the Court vacated the defaulted entered against Dream Motor Cars.

On January 12, 2026, Dream Motor Cars, Inc. filed a cross-complaint against All Valley Dealer Auto Auction, Inc., Mark Antonio Tidwell, and Roes 1 through 10, alleging causes of action for expressed indemnity, implied indemnity, comparative indemnity, declaratory relief, equitable indemnity, and contribution.

On April 8, 2026, the Court granted Dream Motor Cars' motion for judgment on the pleadings to all causes of action in Nwafor's Cross-Complaint with 20 days' leave to amend.

On June 11, 2026, Dream Motor Cars moved to dismiss Nwafor's Cross-Complaint. The motion is unopposed.

LEGAL STANDARD

(f)

The court may dismiss the complaint as to that defendant when:

...

(2)

Except where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.

(Code Civ.

Proc., § 581, subd. (f)(2).)

DISCUSSION

Dream Motor Cars seeks dismissal of Nwafor's Cross-Complaint on the grounds that Nwafor has failed to file an amended cross-complaint following the Court's grant of Dream Motor Cars' motion for judgment on the pleadings on April 8, 2026. Dream Motor Cars indicates that the Court gave Nwafor 20 days' leave to amend and Nwafor did not file an amended cross-complaint by the April 28, 2026 deadline, nor has Nwafor filed an amended cross-complaint as of the date of this motion.

The Court finds Dream Motor Cars' motion well taken. The Court granted Dream Motor Cars' motion for judgment on the pleadings as to Nwafor's Cross-Complaint on April 8, 2026, with 20 days' leave to amend. (Order re Court Ruling (4/8/26).) Dream Motor Cars gave notice of the Court's ruling on the same day. (Notice of Ruling (4/8/26).) Nwafor has not filed an amended cross-complaint as of the date of this order and has not requested any extension. Accordingly, Dream Motor Cars is entitled to dismissal of Nwafor's Cross-Complaint.

Based on the foregoing, the Court GRANTS the motion.

CONCLUSION

The Court GRANTS Cross-Defendant Dream Motor Cars, Inc.'s Motion to Dismiss the Cross-Complaint Filed Against It. The Court hereby DISMISSES the Cross-Complaint of Nwafor Motorcars and Chikezie Prince Nwafor filed on September 12, 2024, as to Cross-Defendant Dream Motor Cars, Inc. with prejudice. The Court directs Cross-Defendant Dream Motor Cars, Inc. to submit a proposed judgment of dismissal for the Court's review and signature within five calendar days of this order.

Cross-Defendant Dream Motor Cars, Inc. is ordered to give notice of the Court's ruling within five calendar days

of this order.